

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Case Assignment and Initial Scheduling Order

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 2 — Entered March 3, 2025

The Clerk has opened this civil action upon the filing of Asterglen Freight Software, Inc.'s Complaint against Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC. The case is assigned to a United States District Judge in the Northern District of West Virginia. The assigned docket number must appear on every pleading, motion, exhibit, proposed order, and other paper submitted in this action.

Asterglen shall promptly obtain issuance of summonses and complete service in the manner prescribed by the Federal Rules of Civil Procedure. Each defendant shall answer or otherwise respond within the time allowed after service unless the parties stipulate to, or the Court orders, a different date. Any corporate disclosure statement required by Rule 7.1 shall be filed with the party's first appearance.

The parties shall preserve documents, account records, communications, provisioning data, audit material, and other information reasonably related to the claims and defenses. Preservation does not determine admissibility, waive an objection, or expand the proper scope of discovery. Counsel shall confer before seeking judicial relief concerning service, preservation, or scheduling. A request to alter a deadline must state the existing date, the proposed date, the reason for the request, and the position of every affected party.

Initial case-management schedule

After all defendants have appeared, counsel shall conduct the conference required by Rule 26(f) sufficiently early to submit a joint report by June 16, 2025. The report shall identify the claims and defenses, subjects on which discovery may be needed, any proposed limits, preservation measures, issues concerning electronically stored information, privilege procedures, and a proposed schedule for completing discovery and filing dispositive motions.

Initial disclosures shall be exchanged as required by Rule 26(a)(1), subject to any timely objection or stipulation allowed by the rules. Discovery may not begin before the Rule 26(f) conference except by stipulation or court order. The parties should plan for fact discovery to conclude in time for dispositive motions to be filed by November 3, 2025. The Court will enter a further scheduling order after reviewing the joint report and may revise that target.

No party may treat these initial dates as permission to disregard another rule, a service requirement, or a later order. A motion does not suspend a deadline unless the Court says so. Counsel shall propose realistic intervals for written discovery, depositions, expert disclosures if needed, and responses to dispositive motions. The parties shall address whether the Pilot License, change-order communications, provisioning records, audit materials, and damages ledgers can be authenticated by agreement to reduce unnecessary expense.

Filing, communication, and courtroom administration

All counsel admitted in this action shall use the Court's electronic filing system. An electronically filed paper must carry an appropriate signature, identify the filing party, and include a certificate of service when required. Exhibits shall be described clearly enough to distinguish the Pilot License, later communications, operational records, testimony, and financial material. A party seeking restricted treatment must file the required motion and may not assume that a commercial designation alone permits sealing.

Communications about the merits shall be made through filed papers or on the record. Counsel may contact the Clerk's Office about ordinary administrative questions but shall not seek legal advice or communicate privately with chambers about a disputed matter. Proposed orders must be submitted only when requested or authorized. Courtesy copies are not required unless a later notice directs otherwise.

The parties are reminded of their continuing duty to confer in good faith before filing a discovery motion. Any such motion must describe the disputed request, the response, the conference efforts, and the precise relief sought. Nothing in this initial order resolves the merits of Asterglen's contract or interference allegations, any defense, or any counterclaim that may later be pleaded. The order governs administration while the pleadings are joined and a fuller schedule is established.

It is so ORDERED this 3rd day of March, 2025.

BY THE COURT: /s/ District Judge